

4.

CASE #	CASE NAME	HEARING NAME
CVRI2503497	ROGERS-HARLESS vs GILL	MOTION TO COMPEL RESPONSES TO REQUESTS FOR ADMISSIONS SET TWO

Tentative Ruling:

GRANT the motion.

None of the RFA's propounded are overly broad, vague, ambiguous, uncertain or burdensome.

Lloyd to provide further responses without objection within 30 days.

No sanctions.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2504898	ZAKI vs TADROS	MOTION TO DISQUALIFY ORRICK, HERRINGTON & SUTCLIFFE LLP AS COUNSEL FOR DEFENDANT MICHAEL TADROS, REQUEST FOR DISGORGEMENT OF ATTORNEYS' FEES AND PROHIBITION ON USE OF CORPORATE FUNDS FOR DEFENSE OF MICHAEL TADROS

Tentative Ruling:

This Motion to disqualify was originally heard on July 16, 2026. The court incorporates herein by reference the findings and conclusions of law in the court's tentative ruling of July 16, 2026. The parties to this motion were invited to supplement their briefings to address the issue of when Orrick's representation of the Companies ended before Orrick appeared for Tadros in this action. A summary of the supplemental briefing follows:

Supplemental Opposition (filed July 31, 2026)

Orrick's position is that an attorney who has represented a company and its insiders in responding to a shareholder's demands may continue to represent an insider sued for a derivative claim, and that Orrick's representation of the Companies ended when documents were produced months before this case was brought. Orrick relies on section 9(iii) of its Standard Terms of Engagement which states Orrick's representation of the Client will be considered terminated at the earliest of (i) the Client's termination of the representation, (ii) Orrick's withdrawal from the representation, (iii) the substantial

completion of Orrick's substantive work for the Client, or (iv) our sending you our final statement for Services rendered in the Matter. It asserts that Orrick's representation of the Companies ended on or about June 30, 2025, when the companies produced documents to Zaki, conceding that there was no formal communication between Orrick and the Companies ending the representation or final statement for services rendered. Orrick concedes it agreed to accept service on Tadros's behalf, as he was an executive for the two companies on whom service would have been proper, characterizes the \$47,700 September payment as for past legal fees for representing the Companies and the \$6,231.60 November payment as for services for Mr. Tadros personally, and argues *M'Guinness* is distinguishable because Orrick had no funds in its trust account for future work for the companies and never held out that it continued to represent the companies after the suit was filed. Orrick's attorney, Khai LeQuang, provides a supporting declaration attaching the heavily redacted engagement letter. The Companies current counsel, Robert G. Lowey, testifies he first communicated with the Companies on December 16, 2025, and formally engaged on January 6, 2026.

Plaintiffs' Response to Supplemental Opposition (filed August 7, 2026)

Plaintiffs argue Orrick's showing collapses into a single proposition: that finishing the last task on June 30, 2025, automatically ended the relationship. They emphasize Orrick declined to invoke the three §9 triggers that leave a paper trail; client termination, formal withdrawal or a final statement. The Court is asked to infer a self-executing withdrawal from silence. Plaintiffs contend *M'Guinness* is directly on point: completion of the last task followed by a months-long gap did not end the relationship there and cannot here. Post-June 30 conduct is inconsistent with termination: a tolling agreement Orrick papered covering January 1--August 31, 2025, for all parties including the Companies; acceptance of service on the Companies' behalf and extensions for "Defendants" on August 28, 2025; and a nearly three-month delay before contacting Loewy on November 19, 2025. Plaintiffs also dispute "substantial completion," noting documents required by the underlying stipulation were never produced and produced records were altered. Plaintiffs' counsel, Adam Greely, submits a supporting declaration.

Plaintiffs Evidentiary Objections to LeQuang

Plaintiff submits seventeen numbered objections to the LeQuang declaration organized around three primary objections: (1) that core assertions (termination, substantial completion, no simultaneous representation) are legal conclusions; (2) that LeQuang's description of the withheld writings – time records, invoices, trust ledgers, engagement agreements –is in violation of the secondary-evidence rule (Evid. Code §§ 1521, 1523); and (3) that privilege is improperly asserted where Evid. Code § 962 defeats it as between joint clients.

The objections are well taken. The court sustains objections to nos. 1, 2, 5, 6-8, 11, 14, 15, and 16. Sustaining objections 1, 2, 5, 6-8, 11, 16 leaves no admissible evidence of the June 30 termination date; sustaining 14, 15 leaves no admissible evidence explaining the payments or documenting corporate authorization for Tadros's defense.

Plaintiffs Evidentiary Objections to Loewy

Loewy had no relationship with any party until December 16, 2025, yet ¶¶ 3-5 recount Orrick's 2020-mid-2025 engagement, work, and termination. The court sustains all evidentiary objections to the Loewy declaration. Sustaining objections to 3-8 removes all evidentiary support the Loewy declaration provides for the June 30, 2025, termination date.

Conclusion

Plaintiffs have demonstrated that Orrick's representation of the Companies was ongoing when Orrick appeared for Tadros, that all four *M'Guinness* factors are present, that post-June 30 conduct proves continued representation, and that Orrick's evidentiary showing is inadmissible. Orrick failed to carry its burden to make an affirmative showing of termination. Under the automatic-disqualification rule for concurrent representation of clients with adverse interests, disqualification is required.

The Motion to disqualify is granted.

The request for prohibition on corporate funding and disgorgement of fees is denied without prejudice. The court will not entertain further argument on this point.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2504974	JULIENNE vs RIVERSIDE COMMUNITY COLLEGE DISTRICT	DEMURRER ON 2ND AMENDED COMPLAINT

Tentative Ruling:

GRANT Defendant's Request for Judicial Notice. SUSTAIN the demurrer with 30 days leave to amend.

The duty to conduct a classification review is not ministerial and Plaintiff is seeking monetary relief. As the only remedy available from a determination that Plaintiff was working at a higher classification is the payment of wages at the higher rate, the relief sought is solely monetary. Plaintiff fails to plead sufficient facts to support the cause of action for a petition for writ of mandate based on his request for a classification review. In addition, Plaintiff has an adequate remedy at law. FEHA provides remedies that include back pay based on discrimination as well as reemployment. If other remedies at law are available, then the remedy of mandate is not available. (*Agosto v. Board of Trustees of Grossmont-Cuyamaca Community College District* (2010) 189 Cal.App.4th 330, 336.) As the remedies sought by Plaintiff (payment of unpaid wages from being misclassified due to discrimination and reemployment) are available under FEHA, Plaintiff is not entitled to a writ of mandate.